

24AVCV01165 24AVCV01165

County: los-angeles

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Case Number: 24AVCV01165 Hearing Date: August 4, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

DIANA AYALA, an individual,

Plaintiff,

v.

PALMDALE REGIONAL MEDICAL CENTER, an unknown entity; LANCASTER HOSPITAL CORPORATION, a California corporation; and DOES 1 through 50, inclusive,

Defendants.

Case Number 24AVCV01165

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 4, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury and premises liability case, arising from Plaintiff Diana Ayala (Plaintiff) slipping and falling while lawfully on the premises owned by Lancaster Hospital Corporation, dba Palmdale Regional Medical Center (Defendant) on September 18, 2023.

On September 17, 2024, Plaintiff filed a complaint against Defendant, asserting two causes of action for general negligence and premises liability.

On January 9, 2025, Defendant filed an answer to the complaint.

On April 9, 2026, Defendant filed the present motion for a protective order.

On July 21, 2026, Plaintiff filed her opposition.

On July 28, 2026, Defendant filed a reply.

Trial in this matter is set for October 23, 2026.

II. Preliminary Procedural Issues

Meet and Confer – A motion for protective order must be accompanied by a meet and confer declaration under meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2017.020, subd. (a).) Here, Defendant has satisfied this burden, as Defense counsel Jonquil L. Whitehead asserts meet and confer efforts with Plaintiff's counsel were made. (Whitehead Decl., ¶ 5, Ex. B.)

III. Legal Standard

Standard for Protective Orders – Generally, California encourages broad and liberal civil discovery in litigation, permitting discovery of any matter not privileged that is relevant to the subject matter of the action. (Code Civ. Proc., § 2017.010.) Any party may obtain discovery by taking the oral deposition of any person. (Id., § 2025.010.) When the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested, and the deponent shall designate and produce at the deposition its officers, directors, managing agents, employees, or agents most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent. (Id., § 2025.230.) Generally, the service of a deposition notice is effective to require any deponent who is an officer, director, managing agent, or employee of a party to attend and testify. (Id., § 2025.280, subd. (a).)

Notwithstanding this general preference for broad discovery, before a deposition, any party, deponent, or affected organization may move for a protective order. (Id., § 2025.420, subd. (a).) The court may make an order to protect any party, deponent, or organization from unwarranted annoyance, embarrassment, oppression, undue burden, or expense if good cause is shown by the moving party. (Id., § 2025.420, subd. (b).) “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will

lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person.” (Code Civ. Proc., § 2017.020, subd. (a).) “The issuance and formulation of protective orders are to a large extent discretionary.” (Nativi v. Deutsche Bank National Trust Co. (2014) 223 Cal.App.4th 261, 316.) “[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought.” (Id. at 318.)

IV. Discussion

Application – Defendant moves for a protective order to preclude the deposition of Deborah Cockerham-Slaughter (Slaughter) on the grounds that the information and testimony that Slaughter may provide is privileged, confidential, and the notice of taking her deposition has created unwarranted annoyance, embarrassment, and oppression. (Motion, p. 2:4-6.)

Slaughter is Defendant's Director of Risk Management, and Defendant avers that she has no personal knowledge of the incident at issue. (Motion, p. 3:6-9.) Plaintiff has represented that she seeks to take Slaughter's deposition solely based on her execution of the verification pages of Defendant's written discovery responses, but Defendants note that the verifications state “matters stated in the foregoing document are not all within my personal knowledge.” (Motion, p. 3:9-13; Whitehead Decl., ¶ 7, Ex. D.) Defendant argues Slaughter's involvement in this case is limited to her role as Risk Manager in assisting counsel with obtaining information related to this claim, which necessarily implicates information protected by the attorney-client privilege and attorney work-product doctrine per *Scripps v. Superior Court* (2003) 109 Cal.App.4th 59. (Motion, p. 3:13-16.) Defendant argues that any knowledge known by Slaughter is derived exclusively from privileged material, including communications made in anticipation of litigation and information transmitted for assisting counsel in providing legal advice, and therefore, good cause exists for issuance of a protective order to preclude Slaughter's deposition altogether. (Motion, p. 5:2-4.)

In opposition, Plaintiff argues she does not seek to discover any privileged communications between Defendant and its counsel, nor mental impressions or legal opinions, and only seeks testimony regarding Defendant's factual investigation into Plaintiff's claims, including the investigation undertaken in response to Plaintiff's written discovery. (Opp., p. 2:7-10.) Plaintiff further argues that Defendant has failed to establish good cause for precluding the deposition in its entirety, as it fails to establish that appearance would result in unwarranted annoyance, oppression, or undue burden beyond that which is routinely experienced by witnesses in civil litigation, and Defendant merely assumes that privileged questions may be asked, which is not sufficient to warrant a blanket protective order. (Opp., p. 3:13-21.) Plaintiff further asserts that she has received no response identifying the individual who escorted her back into the hospital the date of the incident, and is entitled to discover who investigated the issue, what records were reviewed, whether surveillance footage was reviewed, whether personnel were interviewed, whether other employees were contacted, when those steps occurred, and why the employee has not been identified. (Opp., p. 4:7-14.)

Here, the Court finds good cause to limit the scope of the discovery, but declines to issue a blanket protective order precluding the taking of Slaughter's deposition altogether.

California Code of Civil Procedure section 2031.250, subdivision (a) provides that the party to whom the demand for inspection, copying, testing, or sampling is directed shall sign the response under oath unless the response contains only objections.

Section 2031.250, subdivision (b) establishes that if that party is a public or private corporation or a partnership or association or governmental agency, one of its officers or agents shall sign the response under oath on behalf of that party.

While the moving party here is not claiming that Slaughter is an attorney, it is claiming that she obtained all information by virtue of attorney-client communications or at the direction of attorneys, which thus could reveal attorney work product.

Cal. Code Civ. Proc. § 2031.250(b) addresses in part the problem of a verifier whose knowledge of discovery responses may otherwise be protected attorney-client communication or reveal attorney-work product::

If that party is a public or private corporation or a partnership or association or governmental agency, one of its officers or agents shall sign the response under oath on behalf of that party. If the officer or agent signing the response on behalf of that party is an attorney acting in that capacity for a party, that party waives any lawyer-client privilege and any protection for work product under Chapter 4 (commencing with Section 2018.010) during any subsequent discovery from that attorney concerning the identity of the sources of the information contained in the response.

Thus, to the extent Slaughter's knowledge rests on communications from attorneys, she still could be deposed, just as an attorney verifier could, regarding the "identity of the sources of the information contained in the response." "[W]hen an individual verifies discovery responses, further discovery can be directed to that individual to determine the sources for the initial responses." (Melendrez v. Superior Court (2013) 215 Cal.App.4th 1343, 1352; see also Code Civ. Proc., § 2017.010 [scope of discovery]; Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 590-591 ["relevance" in the context of discovery is broad; for discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement].)

For these reasons, as a verifier, Slaughter can be deposed on the identity of the sources for the discovery responses. There is otherwise no waiver of privilege, and Defendant may appropriately object on privilege grounds in the event that privilege is implicated during the deposition.

Accordingly, the Motion for Protective Order is GRANTED in part. Plaintiff may depose Slaughter to the extent that the deposition adheres to statutes and procedures governing discovery (i.e., determine the identity of the sources of information for the responses she verified). Any inquiry into the nature and substance of any attorney-client communications or attorney work product is prohibited, and Defendant may object when appropriate if any answers would compromise attorney-client or work product privilege.

V. Conclusion

Defendant Lancaster Hospital Corporation, dba Palmdale Regional Medical Center's Motion for Protective Order is GRANTED in part. Plaintiff may depose Slaughter to the extent that the deposition adheres to statutes and procedures governing discovery (i.e., determine the identity of the sources of information for the responses she verified). Any inquiry into the nature and substance of any attorney-client communications or attorney work product is prohibited, and Defendant may object when appropriate if any answers would compromise attorney-client or work product privilege.